

Property Maintenance & Construction (PMC)

(Obstructing Wage Theft Investigation and Worker Intimidation)

In September of last year, we agreed to a [settlement](#) with construction contractor Property Maintenance & Construction LLC and Property Maintenance & Construction Inc. (PMC), to provide the Department of Labor and Industry (DLI) the information needed for their investigation, as well as to call a meeting with workers and an AGO investigator to explain that workers can participate in DLI's investigation without fear of retaliation.

We initially [sued](#) PMC and its owner, Leo Pimentel, for obstructing DLI's wage theft investigation and for intimidating workers. As part of the settlement, PMC also agreed not to inquire whether workers have communicated with DLI, discourage workers from communicating with DLI, instruct workers to provide false information to DLI, amongst other remedies.

Spectrum Plastics Group

(Time Rounding)

In May of this year, we obtained a [settlement](#) with a medical device manufacturing company, Spectrum Plastics Group, Inc. (Spectrum), over its time-rounding practices that will give justice to 500 current and former hourly employees who were not being paid by Spectrum for all the regular and overtime work they performed.

In total, Spectrum's time rounding practice resulted in unpaid regular and overtime wages in the total amount of \$256,814.14. Under the terms of the settlement, Spectrum agreed to pay unpaid wages to its current and former employees from January 2018 through March 31, 2023, who were harmed by its time-shaving practices. Moving forward, Spectrum has agreed to promptly pay its hourly employees all the wages they are owed and to only use a time-rounding system in the future that is neutral, in that it (on average) rounds time to the benefit of workers and Spectrum equally.

Valvoline Instant Oil Change

(Non-Compete Agreements)

In July of this year, we partnered with a multistate coalition of six attorneys general to obtain an agreement to end unfair labor practices at oil change and auto services company Valvoline LLC, Valvoline Instant Oil Change Franchising Inc., and VGP Holdings LLC (Valvoline). Valvoline had required its hourly employees to sign non-competition agreements that prohibited them from working in the oil change business at any store within 100 miles of their Valvoline location for one year after leaving Valvoline. Valvoline also required its hourly employees to sign non-solicitation agreements that forbid them from soliciting current Valvoline employees or customers for one year after their employment with Valvoline ended. These unfair agreements placed an undue burden on workers and significantly reduced their future employment opportunities.

Under the [settlement](#) Valvoline has stopped requiring workers to sign these agreements and will notify current and former employees who would have been impacted by the agreements that they are no longer in effect. If Valvoline materially violates the terms of the agreement in any of the coalition states, my office can seek a \$500,000 penalty.

